

GARFIELD HIGH SCHOOL

Associated Student Body

BYLAWS

Companion to the ASB Constitution

These Bylaws operate under the authority of the Garfield HS ASB Constitution. Where the Bylaws conflict with the Constitution, the Constitution governs. Where the Constitution or Bylaws conflict with applicable Seattle Public Schools, OSPI, RCW, or WAC requirements, the external requirement governs.

ARTICLE 1 — School Identifiers

Section 1. Mascot.

The official mascot of Garfield High School is the Bulldog.

Section 2. Colors.

The official colors of Garfield High School are purple and white.

ARTICLE 2 — Meetings and Procedure

Section 1. Frequency.

The Executive Board shall meet at least once per week while school is in session. The time and location of regular meetings shall be set at the organizational meeting at the start of each school year, in accordance with Section 4.

Section 2. Accessibility.

The Executive Board shall meet in a location and at a time accessible to the student body. Where school structure permits, meetings should be held in conjunction with advisory or another period during which students may attend by request and pass.

Section 3. Special meetings.

Special meetings of the Executive Board may be called by any ASB Officer, or at the request of any member of the student body with the support of the Activity Coordinator. Special meetings follow the same procedural requirements as regular meetings.

Section 4. Organizational meeting.

At the start of each school year, the Executive Board may hold one organizational meeting before its regular meeting schedule and location are set. The sole purpose of the organizational meeting is to establish the time, location, and schedule of regular meetings and to address other purely logistical startup matters. The organizational meeting is exempt from the advance-agenda, public-comment, and accessible-location requirements that apply to regular meetings.

No substantive business, financial decision, or vote other than on logistical startup matters may be conducted at the organizational meeting.

Section 5. Emergency meetings.

In an emergency requiring Executive Board action sooner than the notice requirements for a regular or special meeting allow, an emergency meeting may be called by the President or, in the President's unavailability, the Vice President, with the concurrence of the Activity Coordinator that the situation constitutes a genuine emergency. Notice shall be given to Executive Board members as soon as reasonably practicable. The standard advance-agenda and posted-notice requirements may be waived for emergency meetings. Only matters constituting the emergency may be addressed at an emergency meeting; the meeting shall otherwise follow regular procedures, including public comment to the extent practicable.

Section 6. Meeting structure.

Each regular Executive Board meeting shall ordinarily proceed in the following order:

- (a) Call to order;
- (b) Approval of minutes from the previous meeting;
- (c) General public comment;
- (d) Consent agenda;
- (e) Action items;
- (f) Discussion items;
- (g) Reports;
- (h) Adjournment.

Section 7. Posted agendas.

The agenda for each regular Executive Board meeting shall be posted publicly at least 24 hours in advance of the meeting in a location accessible to all students. The Executive Secretary is responsible for preparing and posting the agenda in coordination with the President.

Section 8. Minutes.

Minutes of each Executive Board meeting shall be taken by the Executive Secretary or their designee and shall record attendance, agenda items addressed, motions made, votes taken with results, and any discussion of importance. Minutes are public records and shall be made available to the student body upon request.

ARTICLE 3 — Public Comment

The Executive Board shall provide opportunity for public comment at each regular meeting, including general comment and comment on specific action items.

Speakers may pre-register or sign up at the meeting; pre-registered speakers shall be heard first. Each speaker is allotted two minutes, reducible to one minute by the chair if more than four speakers are scheduled. Total public comment time shall not exceed eight minutes per meeting except by majority vote of the Executive Board.

When time does not permit all signed-up speakers, priority shall be given to: speakers addressing a specific action item before the Executive Board, then Running Start students, then pre-registered speakers in order, then walk-in speakers.

Before voting on the consent agenda, the chair shall invite public comment on any item included. Any Executive Board member may then move to pull items for individual discussion, including in response to issues raised in public comment.

The Executive Board shall not engage in back-and-forth debate with speakers, though the chair may invite clarifying questions. The chair may rule a speaker out of order for personal attacks, privacy violations, profanity, or other violations of the Student Handbook; the ruling may be overturned by majority vote of the Executive Board.

Written testimony may be submitted by email to the Executive Secretary at least 24 hours before a meeting. Length and other requirements for written testimony are established in the Standing Rules. Written testimony shall be distributed to Executive Board members before the meeting and attached to the meeting minutes.

Written testimony shall ordinarily include the writer's full name. A student who wishes to submit anonymously may send their testimony to the Activity Coordinator instead of the Executive Secretary. The Activity Coordinator shall determine whether the submission is appropriate for distribution — applying the same content rules as for named submissions — and may distribute it to the Executive Board with the writer's identity withheld, summarize it where verbatim distribution would risk identifying the writer, or decline to distribute it. The Activity Coordinator's decision is not subject to override, in order to preserve the writer's anonymity. Submission instructions, including applicable confidentiality limits, shall be made available to students alongside the submission process.

ARTICLE 4 — Consent Agenda and Voting

Section 1. Consent agenda.

Routine matters before the Executive Board — including but not limited to approval of purchase orders, fundraising request approvals, club charter renewals, and approval of routine event plans — shall be presented as a consent agenda for a single combined vote.

Section 2. Pulling items.

Before voting on the consent agenda, the chair shall invite public comment on any item included. Any Executive Board member may then move to pull items for individual discussion, including in response to issues raised in public comment. Pulling an item requires no second and no stated justification. Pulled items shall be addressed under action items, with their own public comment opportunity if not already addressed.

Section 3. Voting.

Authority to make decisions regarding spending of ASB funds shall be vested in the Executive Board, exercised through the consent agenda or as separate action items. Fiscal matters and component proposals decided by the Executive Board shall be determined by simple majority of voting parties whose votes are cast on the matter, unless otherwise specified.

Section 4. Class voting procedure.

In accordance with Article IV of the Constitution, each class casts one vote on the Executive Board, decided by the class's officers in attendance. If multiple Class officers are present, the

vote is determined by majority among them, with the Class President (or, if absent, the most senior officer present) deciding ties or non-majority outcomes. If no Class officer is present, the class forfeits its vote for that meeting.

Section 5. Abstentions.

A voting party may abstain from a vote. Abstentions are not counted toward the threshold for passage of a motion calculated as a fraction of votes cast.

ARTICLE 5 — Eligibility and Qualifications

Section 1. Enrollment.

Candidates for all elected ASB and Class offices must be enrolled at Garfield High School during the school year for which they hold office, and must be enrolled on campus for at least three class periods of the day.

Section 2. Grade point average.

Candidates must have a grade point average of at least 2.0. This may be calculated as either the GPA from the semester preceding the election or the cumulative GPA through the end of the previous semester, at the candidate's election. Officers must submit a grade check at the end of each quarter; if the GPA falls below 2.0, the officer is placed on probation for one quarter to raise their GPA. If the requirement is not met following the probation period, the officer is removed from office.

Section 3. ASB President — additional requirements.

The ASB President must be a rising senior or rising junior at the time of election (i.e., must be a senior or junior in the school year for which they will hold office), must have attended Garfield High School for at least one full year, and must have completed at least one semester of the Leadership class.

Section 4. ASB Vice President — additional requirements.

The ASB Vice President must be a rising senior or rising junior at the time of election (i.e., must be a senior or junior in the school year for which they will hold office).

Section 5. Additional pre-candidacy requirements.

The Executive Board may establish, through the Standing Rules, additional requirements that candidates must satisfy before running for office, such as a leadership-engagement or orientation requirement. Any such requirement shall be applied equitably and published before the candidacy application period opens.

Section 6. Concurrent service.

A student may not simultaneously hold an elected ASB Officer position and an elected Class Officer position.

ARTICLE 6 — Leadership Class Admission

Admission to the Leadership class shall be determined by the Activity Coordinator in accordance with school enrollment procedures and any criteria established in the Standing Rules.

ARTICLE 7 — Officer Duties

Section 1. ASB President.

The ASB President shall:

- (a) chair regular meetings of the Executive Board;
- (b) serve as the chief spokesperson and representative of the student body;
- (c) direct the day-to-day operational work of the Leadership class;
- (d) prepare meeting agendas in coordination with the Executive Secretary;
- (e) attend administrative meetings on behalf of the ASB, including Building Leadership Team meetings where applicable;
- (f) ensure that ASB business is conducted in compliance with this Constitution, the Bylaws, and applicable district and state requirements;
- (g) perform such additional duties as required by the Executive Board or Activity Coordinator.

Section 2. ASB Vice President.

The ASB Vice President shall:

- (a) assume the duties of the President in the President's absence;
- (b) succeed to the office of President in case of permanent vacancy of that office;
- (c) chair the Constitutional Amendments Committee and oversee the constitutional amendment process;
- (d) serve as parliamentarian, ruling on points of order during Executive Board meetings, with rulings subject to override by simple majority of the Executive Board;
- (e) perform such additional duties as delegated by the President or required by the Executive Board.

Section 3. ASB Executive Secretary.

The ASB Executive Secretary shall:

- (a) represent the unelected members of the Leadership class on the Executive Board;
- (b) maintain the running list of pending purchase order and fundraising requests, prepare the consent agenda for each meeting, and verify that each request has sufficient funds in the relevant account;
- (c) flag any non-CARS-compliant or otherwise problematic requests for individual discussion;
- (d) prepare and present the monthly financial report to the Executive Board, in collaboration with the Activity Coordinator and the Fiscal Specialist;

- (e) lead the spring budget preparation in collaboration with the Activity Coordinator and the Fiscal Specialist;
- (f) sign all ASB financial paperwork, alongside the Activity Coordinator and Fiscal Specialist, in accordance with SPS procedures;
- (g) take meeting minutes for the Executive Board, or designate a notetaker;
- (h) serve as the named point of contact for chartered clubs and components, maintain the active club roster, and report to the Executive Board on club status;
- (i) perform such additional duties as required by the Executive Board or Activity Coordinator.

The Executive Secretary is selected by the unelected members of the Leadership class and confirmed by majority vote of the Executive Board.

Section 4. Class President.

The Class President shall:

- (a) preside over Class Council meetings;
- (b) serve as the chief spokesperson of the class;
- (c) participate in determining the class's vote on the Executive Board, breaking ties or resolving non-majority outcomes among Class officers;
- (d) coordinate planning of class activities and events;
- (e) perform such additional duties as required by the Class Council or Activity Coordinator.

Section 5. Class Vice President.

The Class Vice President shall:

- (a) assume the duties of the Class President in the President's absence, including breaking ties on the class's Executive Board vote;
- (b) succeed to the office of Class President in case of permanent vacancy of that office;
- (c) assist in planning and executing class activities and events;
- (d) participate in determining the class's vote on the Executive Board;
- (e) perform such additional duties as required by the Class Council.

Section 6. Class Secretary.

The Class Secretary shall:

- (a) maintain meeting minutes and records for the Class Council;
- (b) handle the financial records for the class in coordination with the Executive Secretary, the Activity Coordinator, and the Fiscal Specialist;
- (c) participate in determining the class's vote on the Executive Board;
- (d) perform such additional duties as required by the Class Council.

ARTICLE 8 — Elections

Section 1. When held.

Annual elections for all ASB and Class offices, except 9th grade Class offices, shall be held in April of each school year. Elections for the 9th grade Class offices shall be held in the fall, no later than the end of the second month of the school year following enrollment.

Section 2. Concurrent format.

ASB and Class elections shall be conducted concurrently, on a single ballot administered through one election cycle.

Section 3. Voting eligibility.

All currently enrolled students of Garfield High School are eligible to vote in ASB elections. Students may vote only in the Class election for the class to which they belong.

Section 4. Voting method.

The voting method shall be set by the Election Committee with the approval of the Activity Coordinator. Votes shall be cast anonymously, except where the chosen method requires identifying information solely to verify the voter's eligibility and prevent duplicate voting.

Section 5. Election Committee.

The Election Committee shall be chaired by the most senior outgoing Whole-School Officer (President, Vice President, or Executive Secretary). If none of the Whole-School Officers are leaving Garfield in the following school year, the chair shall be appointed by the Activity Coordinator and approved by the Executive Board. The Committee shall include other members of the Executive Board who are not running for re-election, and may enlist the help of any member of the Leadership class for races in which they are not directly involved.

Section 6. Candidate applications.

Candidates for ASB and Class offices shall submit an application by the deadline set by the Election Committee. The Election Committee shall determine the components of the application with input from the Executive Board.

Section 7. Public candidacy.

All candidacies shall be public. Candidate names shall appear on the ballot. Candidates shall present to the relevant electorate (the whole student body for ASB races, the class for Class races), in a format determined by the Election Committee.

Section 8. Tie-breaking.

In the event of a tie vote for any office, a runoff election shall be held within the timeline set by the Election Committee.

Section 9. Disqualification.

Grounds for disqualification of a candidate include violation of campaign rules, misrepresentation on the candidate application, and conduct violations during the election period. The Election Committee may also exercise discretion in disqualification for grounds not enumerated, subject to appeal to the Executive Board by majority vote.

Section 10. Campaign rules.

Candidates shall comply with general campaign rules established annually in the Standing Rules. Physical campaign materials posted on Garfield High School premises shall be reviewed and approved by the Election Committee before posting. Candidates shall provide the Election Committee with links to all digital campaign communications upon publication; digital materials are not subject to pre-approval but may be reviewed and required to be removed by the Election Committee if found in violation. Repeated or substantial violations of campaign rules are grounds for disqualification.

Section 11. Term.

Officers elected in spring assume office at the start of the following school year and serve through the end of that school year. Officers elected in the fall (9th grade Class officers) serve from inauguration through the end of that school year.

Section 12. Mentoring transition.

Newly elected officers shall be invited to a transition meeting with their outgoing predecessor, ordinarily in May or June, to support a smooth handoff.

ARTICLE 9 — Vacancies

Section 1. ASB President vacancy.

If the office of ASB President is vacated mid-term, the disposition shall depend on when the vacancy occurs:

(a) If the vacancy occurs in the first half of the school year, the ASB Vice President shall serve as interim President, and a special election shall be held within thirty school days to fill the office for the remainder of the term.

(b) If the vacancy occurs in the second half of the school year, the ASB Vice President shall succeed to the office of President for the remainder of the term, and the office of Vice President shall be filled by special election within thirty school days.

Section 2. ASB Vice President vacancy.

If the office of ASB Vice President is vacated mid-term, a special election shall be held within thirty school days to fill the office for the remainder of the term.

Section 3. ASB Executive Secretary vacancy.

If the office of ASB Executive Secretary is vacated mid-term, a new Executive Secretary shall be selected through the same process as the original selection: nomination by the unelected members of the Leadership class and confirmation by the Executive Board.

Section 4. Class officer vacancy — succession.

If a Class President position is vacated, the Class Vice President shall succeed to that office. If a Class Vice President position is vacated, the Class Secretary shall succeed to that office. The vacancy created at the bottom of the chain shall be filled by special election within thirty school days.

Section 5. Class officer vacancy — multiple positions.

If all three Class officer positions are vacated simultaneously, the Executive Board shall appoint a member of the Leadership class from the same grade level to serve as interim Class

President until a special election is held. The special election shall be held within thirty school days.

Section 6. Special elections.

Special elections shall be conducted under the general rules of Article 8 of these Bylaws, with timelines compressed as needed to meet the thirty-school-day requirement.

ARTICLE 10 — Vote of No Confidence and Recall

Section 1. Vote of no confidence — Executive Board members.

Two members of any voting parties on the Executive Board may initiate a vote of no confidence against a member of the Executive Board by submitting a written petition. The petition shall state one or more specific reasons relating to the member's performance of duties, conduct in office, or compliance with the Constitution and Bylaws.

The vote shall be held at the next regular meeting at least two school days after notice is given. Both the petitioning members and the member in question shall be given reasonable time to present before the vote. The vote of no confidence passes by simple majority of the Executive Board's voting parties whose votes are cast on the matter. A vote of no confidence is a formal warning; it does not by itself remove the officer from office. A successful vote of no confidence places the officer on probation.

Section 2. Probationary period.

Following a successful vote of no confidence, the officer enters a probationary period of ten school days. During the probationary period, the officer shall continue in their full role. The officer shall meet at least biweekly with the Activity Coordinator to discuss progress on the concerns raised in the petition. The Executive Board may, at the time of the vote of no confidence, specify additional requirements to be completed during the probationary period.

Section 3. Vote of removal — Executive Board members.

At the end of the probationary period, any two members of any voting parties on the Executive Board may call for a vote of removal by submitting a written petition. If no petition is filed, no vote of removal is held and the probationary period ends without further action.

If called, the vote of removal shall be held at the next regular meeting at least two school days after notice is given. The officer shall be given reasonable time to present before the vote. The vote of removal passes by two-thirds of the Executive Board's voting parties whose votes are cast on the matter. A successful vote of removal removes the officer from office immediately.

If new conduct constituting grounds for removal occurs during the probationary period, the original probation may be ended early and a vote of removal held immediately. Such accelerated removal still requires written petition stating the new grounds, two school days' notice to the officer, opportunity for the officer to respond, and two-thirds affirmative vote.

Section 4. Vote of no confidence — Class Council members.

Two of the three officers of a Class Council may initiate a vote of no confidence against the third by submitting a written petition. The petition shall state one or more specific reasons relating to the member's performance of duties, conduct in office, or compliance with the Constitution and Bylaws. The vote of no confidence is taken internally within the Class Council and does not

require Executive Board involvement. The vote passes by majority of the Council. A successful vote of no confidence places the officer on probation under the terms of Section 2 of this Article.

Section 5. Vote of removal — Class Council members.

At the end of the probationary period, the other two Class Council officers may call for a vote of removal. If called, the vote shall pass by majority of the Council. The removal shall not take effect until ratified by simple majority of the Executive Board. Before voting on ratification, the Executive Board shall hear from both the petitioning officers and the officer in question.

If new conduct constituting grounds for removal occurs during the probationary period, the accelerated removal procedure in Section 3 applies, with the internal Class Council vote followed by Executive Board ratification.

Section 6. Vote of no confidence — Activity Coordinator.

Two members of any voting parties on the Executive Board may initiate a vote of no confidence on the Activity Coordinator at any time during the school year by submitting a written petition. The petition shall state one or more specific concerns relating to the Activity Coordinator's performance of their role. The Activity Coordinator shall be given at least two school days' notice and reasonable time to address the Executive Board before the vote. A vote of no confidence requires affirmative votes from a simple majority of the Executive Board's voting parties whose votes are cast on the matter. A vote of no confidence does not remove the Activity Coordinator. The result of the vote, including the Executive Board's stated concerns, shall be communicated in writing to the Principal.

Section 7. Eligibility after removal.

A member removed under Section 3 or Section 5 shall be ineligible to hold any ASB or Class office for one year following removal. Following the one-year period, a removed member may run for office only with the approval of the Activity Coordinator.

Section 8. Recall by petition — Class officers.

A Class officer may be recalled by petition signed by at least 33% of members of that class. The petition shall be in writing and shall state one or more specific reasons relating to the officer's performance of duties, conduct in office, or compliance with the Constitution and Bylaws. The Activity Coordinator shall verify that the stated reasons fall within these categories; the Activity Coordinator shall not evaluate the truth or persuasiveness of the reasons. The Activity Coordinator shall validate the signatures.

If validated, a recall vote shall be held among the class. The recall succeeds if it receives two-thirds of votes cast, provided that votes cast represent at least one-third of the class. The officer who is the subject of the recall shall be given reasonable opportunity to address the class before the vote.

Section 9. Recall by petition — ASB Officers.

An ASB Officer may be recalled by school-wide petition signed by at least 25% of currently enrolled students. The petition shall be in writing and shall state one or more specific reasons under the same standards as Section 8. The Activity Coordinator shall verify reason categories and validate signatures.

If validated, a recall vote shall be held among the student body. The recall succeeds if it receives two-thirds of votes cast, provided that votes cast represent at least one-third of

currently enrolled students. The officer who is the subject of the recall shall be given reasonable opportunity to address the student body before the vote.

Section 10. Concurrent petitions.

Only one recall petition may be active against a given officer at a time. A second petition filed while the first is active shall be deferred until the first resolves.

Section 11. New petitions following failure.

After a recall petition fails (whether for insufficient signatures or by losing the recall vote), no new petition may be brought against the same officer alleging the same grounds. New petitions must allege different grounds than those stated in any previously failed petition.

ARTICLE 11 — Clubs and Components

Section 1. Definition.

Components are extra-curricular activity groups sanctioned by the ASB and operating under its umbrella. Components include clubs, athletic teams, and class accounts.

Section 2. Athletic groups.

Athletic teams sanctioned by Garfield High School are considered chartered components of the ASB and are subject to the same requirements as other chartered clubs, with additional oversight from the Athletic Director, the Washington Interscholastic Activities Association (WIAA), and SPS athletics policy. Where additional oversight requirements conflict with this article, the additional oversight requirements govern.

Section 3. Chartering.

All Student Organizations must be granted a charter by the Executive Board to be considered an official Garfield High School Student Organization. To be chartered, an Organization must:

- (a) submit a written application to the Executive Board describing the Organization's purpose and goals;
- (b) demonstrate student interest by listing names of students who will participate;
- (c) secure a staff member who is currently employed by Seattle Public Schools (or an authorized contractor in active contract) to serve as Advisor;
- (d) include at least one Officer responsible for the Organization, with at least one Officer designated as financial point of contact;
- (e) demonstrate that membership shall not be denied on the basis of any characteristic protected under Article II of the Constitution.

Section 4. Officers.

Each chartered club shall have at least one Officer at all times. Clubs are encouraged but not required to have additional officers, including President, Secretary, and a financial point of contact. Officer positions and the students filling them shall be communicated to the Executive Secretary as soon as they are filled or changed.

Section 5. Meetings and minutes.

Each chartered club shall meet at least once per month during the school year. Governance meetings — those where the club takes formal action, including but not limited to elections, financial decisions, fundraising approval, event planning votes, or other significant organizational decisions — require minutes recording attendance, agenda items, decisions made, and votes taken. Meetings consisting of practice, performance, project work, or other activity-focused sessions do not require minutes. Each club shall maintain a general record of meeting frequency sufficient to demonstrate active operation.

Minutes shall be provided to the Executive Secretary at least once per quarter, and shall be furnished upon request to the Executive Secretary, the President, the Activity Coordinator, or the Fiscal Specialist.

Section 6. Advisor presence.

Organization Advisors must be present at all official Organization meetings that involve financial transactions, voting, or other activities required to be recorded in minutes. Advisors must also be present on official school-sanctioned Organization trips off the Garfield High School campus. If the Organization Advisor cannot be present, any other adult qualified under SPS policy may serve in their place.

Section 7. Probation.

If the Executive Board finds that a club has violated this Constitution, Bylaws, the Garfield Student Handbook, or applicable SPS policy, the Executive Board may, by simple majority vote and after hearing from a representative of the club, place the club on probation. The Executive Secretary shall communicate probation status and conditions to the club. Probation conditions may include heightened minutes-keeping, additional reporting, or restrictions on activities.

Section 8. Charter revocation.

Grounds for charter revocation include:

- (a) failure to maintain at least one Officer;
- (b) failure to maintain an Advisor as required by Section 3(c);
- (c) failure to meet the meeting frequency or minutes-keeping requirements of Section 5;
- (d) failure to adhere to the Garfield Student Handbook;
- (e) repeated or substantial violations of this Constitution, Bylaws, or applicable SPS policy;
- (f) violation of probation conditions.

Charter revocation requires a simple majority vote of the Executive Board, after notice to the club and an opportunity for the club to be heard. The club may appeal a revocation by requesting reconsideration at the following Executive Board meeting.

Section 9. Disposition of funds upon revocation.

Funds in the account of a club whose charter has been revoked shall be frozen for one year. After one year, the funds revert to the ASB General Fund. A club may re-apply for a charter at any time, but funds that have already reverted to the General Fund cannot be recovered through re-chartering.

ARTICLE 12 — Finance

Section 1. Public funds — CARS standard.

ASB funds are public funds and shall be expended only on optional noncredit extracurricular events and activities of a cultural, athletic, recreational, or social nature (CARS), or otherwise to support the activities and programs of the ASB, in accordance with applicable RCW, WAC, and SPS policy.

Section 2. Annual budget.

The Executive Board shall prepare an annual ASB budget in collaboration with the Activity Coordinator and Fiscal Specialist, in accordance with the SPS budget calendar. The Executive Secretary shall lead budget preparation each spring.

Section 3. Prior approval.

No ASB funds may be expended without prior approval of the Executive Board, except as otherwise provided in this Constitution. Retroactive reimbursements are permitted only in extreme circumstances and are subject to increased scrutiny.

Section 4. Treasurer authority.

The Executive Secretary serves as the student-side fiduciary for ASB funds. The Executive Secretary, in collaboration with the Activity Coordinator and Fiscal Specialist, is responsible for budget preparation, review and approval of disbursements, and monthly financial reporting to the Executive Board. All ASB financial paperwork shall be signed by the Executive Secretary alongside the Activity Coordinator and Fiscal Specialist, in accordance with SPS procedures.

Section 5. Beginning balance distribution.

At the start of each fiscal year, the beginning balance for each active club, class, and athletic activity shall be the prior year's ending balance carried forward. Funds shall ordinarily remain with the activity that earned them. The beginning balance for the ASB General account shall include any funds reverted from inactive accounts or reallocated by the Executive Board under this Article.

Section 6. Executive Board authority over ASB funds.

All ASB funds remain ultimately under the authority of the Executive Board. Notwithstanding the carry-over provision in Section 5, the Executive Board may by simple majority vote reallocate funds from any ASB account to the General Fund or to another account when, in its judgment, doing so serves the broader interests of the student body or the ASB as a whole. Before any such reallocation, the affected club, class, or activity shall be given notice and an opportunity to address the Executive Board. Reallocation decisions shall be recorded in the meeting minutes with the stated rationale.

Section 7. Compliance.

All financial activities of the ASB shall comply with SPS policy, OSPI regulations, the Revised Code of Washington (RCW), and the Washington Administrative Code (WAC). Where any provision of this Constitution or Bylaws conflicts with those external requirements, the external requirements govern.

ARTICLE 13 — Fundraising

Section 1. Approval required.

All proposed fundraisers must be approved by the Executive Board before commencing. To be approved, a proposed fundraiser must:

- (a) be submitted on a first-come, first-served basis (which does not necessarily preclude simultaneous similar fundraisers);
- (b) for food fundraisers, comply with district regulations and not compete with cafeteria services;
- (c) for clothing items including uniforms, include a detailed design proposal;
- (d) comply with SPS fundraising procedures and applicable state and federal law.

Section 2. Fundraising calendar.

The Activity Coordinator, Fiscal Specialist, and Executive Secretary shall maintain an ongoing calendar of approved fundraisers to prevent unintended conflicts.

Section 3. Penalty for unapproved fundraisers.

A penalty shall be deducted from the profits of any fundraiser commenced without prior Executive Board approval and required financial paperwork. The penalty rate shall be set in the Standing Rules. The penalty shall be folded into the ASB General Fund.

Section 4. Class fundraising.

Class fundraising is encouraged in support of class activities but is not required. Each Class Council shall develop an annual budget at the start of each school year, including planned class events and the fundraising required to support them. The Executive Board shall review and approve each Class Council's budget in conjunction with the consolidated ASB budget.

ARTICLE 14 — Activity Cards

Section 1. Availability.

The ASB shall make activity cards available to students. Pricing, discounts, and waiver provisions shall be established annually in the Standing Rules. The Executive Board shall ensure that financial barriers do not prevent any student from obtaining a card.

Section 2. Discounts.

Members of the ASB who hold a current activity card shall be entitled to discounts on ASB-sponsored activities and events. The Executive Board shall release a list of privileges granted to activity cardholders annually.

Section 3. Financial hardship.

If a student is unable to purchase an activity card due to financial difficulties, an activity card shall be provided through referral by a school counselor or administrator, in accordance with the procedures established in the Standing Rules.

ARTICLE 15 — Records and Compliance

Section 1. Records retention.

Records of the ASB, including the Constitution, Bylaws, Standing Rules, meeting minutes, financial records, and complaint records, shall be maintained in accordance with applicable Seattle Public Schools records retention policies. Per SPS policy, the Constitution, Bylaws, club constitutions and bylaws, and meeting minutes are designated as permanent records.

Section 2. Records access.

Public records of the ASB shall be available to members of the student body upon reasonable request. Confidential records, including individual complaint records and personnel-related materials, shall be available only to those authorized under this Constitution or applicable district policy.

Section 3. Compliance.

All activities of the ASB are subject to Seattle Public Schools policy, OSPI regulations, the Revised Code of Washington (RCW), and the Washington Administrative Code (WAC). Where the requirements of those external authorities conflict with this Constitution or Bylaws, the external requirements govern.